ENCINO

Newsom signs bills on federal immigration efforts

City News Service

ENCINO - Gov. Gavin Newsom on Tuesday signed two bills co-authored by Assemblyman Jesse Gabriel, D-Encino, aimed at restricting the use of state property for federal immigration enforcement and requiring state investigations of fatal shootings of unarmed civilians by immigration officers.

Assembly Bills 1806 and 1807 were among several immigration-related measures signed Tuesday by Newsom.

AB 1806 requires the California Attorney General's Office to conduct an independent investigation into fatal shootings of unarmed civilians by immigration officers, according to Gabriel's office.

The measure builds on a state law enacted in 2020 requiring the Attorney General's Office to investigate fatal police shootings of unarmed civilians. Under AB 1806, if an investigation finds that an immigration officer violated state law, the state prosecutor is authorized to prosecute the case, and the findings must be made public in a written report.

AB 1807, also co-authored by Assemblyman Juan Carrillo, D-Palmdale, prohibits state-owned property, including parking lots, vacant lots and garages, from being used to stage, process, detain or otherwise support federal immigration enforcement operations.

The measure also requires state agencies to identify properties that could be used for such operations, post signs, limit access and develop procedures intended to prevent unauthorized federal immigration enforcement activity on state property.

"California must continue to push back against the Trump Administration to protect our immigrant communities and our constitutional rights," Gabriel said in a statement.

"I'm proud that AB 1807 will prohibit federal immigration agents from using state property for immigration enforcement, while AB 1806 will require an independent, transparent, and thorough state investigation when an immigration officer fatally shoots an unarmed civilian. Together, these new laws will strengthen the rule of law and protect the people who call our state home."

Gabriel's office said the legislation was developed in response to federal immigration enforcement operations in Los Angeles and elsewhere around the country.

"As the author of the landmark legislation that created independent investigations into police shootings (AB 1506, 2020), I applaud Assemblymember Gabriel and Governor Newsom for expanding this important accountability measure to include actions by immigration officers through AB 1806," Sacramento Mayor Kevin McCarty said in a statement.

Carrillo said AB 1807 was intended to prevent federal agents from using state resources to conduct immigration enforcement operations.

"What we are seeing throughout our nation is a result of an administration that has normalized fear, intimidation, and use of force in our communities. That is why I'm proud to stand alongside Assemblymember Gabriel to ensure federal agents do not continue to terrorize immigrant communities and American citizens in our state," Carrillo said.

AB 1806 and AB 1807 were sponsored by the California Immigrant Policy Center and supported by a coalition of labor, immigrant-rights, legal-aid, civil-rights and faith organizations, according to Gabriel's office.

ASK THE LAWYER

Do I have the right to euthanize my dog under state law?

Ron Sokol
COLUMNIST

Q: Like many others, I came to a terrible, nightmarish situation where my dog was in the last stages of his life. He was 15, unable to stand well, not eating and, finally, not in full control of basic functions. Our veterinarian was kind and thoughtful, and helped with making a decision not to let him suffer further. One question that nags at me is what right I have to even make that decision?

H.P., Tarzana

A: So many have had a similar experience. It is so very tough.

Your question raises considerations that are philosophical, moral, legal and practical. Under California Civil Code Section 655, the dog is your property, which you can legally own. The dog is not, however, generally considered a legal person with rights similar to what you may claim. The dog cannot vote, for example, or enter into a contract itself. You can act for the dog, in its best interests.

But, to be sure, you are subject to criminal prosecution if you engage in conduct toward the dog that is malicious and/or intentional that would wound, torture or kill the animal. There are a wide variety of actions and inactions that can rise to the level of punishable animal cruelty under California Penal Code Section 597. This can include overworking the animal.

California Penal Code Section 597.1 addresses some circumstances in which a dog may be humanely euthanized by the government, or by an official acting on behalf of the government. Unnecessary suffering can be a significant part of the evaluation.

Bottom line, a bona fide, humane euthanasia, which is done to prevent or end serious, unnecessary suffering, is not cruelty. Rather, it can be considered genuinely merciful. Significant care must be taken with such decision making, however, since it literally is a life or death choice. A very sad, often extremely difficult choice.

Q: Just what is considered animal cruelty here?

H.D., Lawndale

A: As noted above, California Penal Code Section 597 sets forth many types of behaviors that are illegal. Overworking is mentioned in the prior response. Other behavior that is outlawed includes depriving the animal of necessary sustenance or shelter, tormenting or torturing, cruelly beating or, to quote the code in part: "… subjects an animal to needless suffering, or inflicts unnecessary cruelty upon the animal, or in any manner abuses an animal …"

HEALTH REQUIREMENTS

While California does not have a blanket rule that requires each dog to be microchipped, certain localities do (such as Los Angeles County for dogs older than 4 months; check to see if the regulation applies to your city of residence). California does require dogs older than 4 months to be rabies vaccinated and licensed.

Ron Sokol has been a practicing attorney for more than 40 years, and has also served many times as a judge pro tem, mediator, and arbitrator. It is important to keep in mind that this column presents a summary of the law, and is not to be treated or considered legal advice, let alone a substitute for actual consultation with a qualified professional.

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